

STATE OF NEW YORK

7792--A

2025-2026 Regular Sessions

IN SENATE

May 6, 2025

Introduced by Sen. FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Disabilities -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to protecting the communication rights of individuals with disabilities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The mental hygiene law is amended by adding a new section 13.45 to read as follows:

§ 13.45 New York state communication bill of rights for individuals with disabilities.

In order to ensure that each person with a disability is able to lead a life of dignity, all persons with a disability shall have the right to communicate in their preferred manner and all staff and providers under this section, shall have the obligation to ensure and support such rights, which shall include, but not be limited to:

(a) the right to utilize any communication method that meets their needs, including but not limited to:

(1) augmentative and alternative communication (AAC) techniques and devices;

(2) spelling boards, letterboards and typing-based communication;

(3) sign language and non-verbal gestural systems; and

(4) speech-generating devices or any other assistive technology;

(b) the right to have such individual's communication method recognized and supported in schools, community residences, and public institutions;

(c) the right to speech therapy and communication support by duly licensed professionals without arbitrary restrictions;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 (d) the right to have at least one trained staff member available in
2 every facility or program to support individuals who require specialized
3 communication assistance;

4 (e) the right to receive appropriate communication supports from
5 trained staff, including direct support professionals (DSPs), educators,
6 and healthcare providers; and

7 (f) the right to experience no restrictions or bans on an individual
8 with disabilities' communication method.

9 § 2. This act shall take effect on the one hundred eightieth day after
10 it shall have become a law.